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Melendez v. Ford Motor Company,
et al., Case No. 24PSCV00660

ORDER ON MOTION
FOR SUMMARY JUDGMENT

Defendants Ford Motor Company
and WC Performance Ford, Inc.'s Motion for Summary Judgment is DENIED. FMC's
Motion for Summary Adjudication is GRANTED as to Issue Nos. 1, 5, and 10,
DENIED as MOOT as to Issues Nos. 2-4 and 6, and DENIED as to Issue Nos. 7-9.

Background

Plaintiff Rudy Melendez ("Plaintiff") alleges as follows:

On or about June 22, 2017,
Plaintiff entered into a warranty contract with Ford Motor Company ("FMC")
regarding a 2017 Ford F150, VIN # 1FTEW1EG4HKD09633 ("subject vehicle"). Prior
to Plaintiff purchasing the subject vehicle, FMC knew that vehicles equipped
with the same 10-speed transmission as the subject vehicle suffered from one or
more defects that can cause the vehicles and their 10-speed transmissions to
experience hesitation and/or delayed acceleration; harsh and/or hard shifting;
jerking, shuddering, and/or juddering ("Transmission Defect"). FMC
concealed the Transmission Defect. Plaintiff delivered the subject vehicle to WC
Performance Ford Inc. (erroneously sued as "Performance Ford") ("WC
Performance") for substantial repair on at least one occasion.

On May

8, 2024, Plaintiff filed a First Amended Complaint ("FAC"), asserting causes of action against FMC, Performance and Does 1-10 for: (1) Violation of Subdivision (d) of Civil Code Section 1793.2, (2) Violation of Subdivision (b) of Civil Code Section 1793.2, (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2, (4) Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794 and 1795.5), (5) Fraudulent Inducement—Concealment, and (6) Negligent Repair.

The
Final Status Conference is set for September 8, 2026. Trial is set for September 22, 2026.

Legal Standard

The
purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119 [quotations omitted; emphasis theirs].)

"On a
motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)

A
defendant or cross-defendant moving for summary judgment or summary adjudication "has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

Once that burden has been met, "the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Id.)

Discussion

FMC and

Performance move the Court for summary judgment in their favor and against Plaintiff on Plaintiff's FAC; in the alternative, they seek summary adjudication as follows:

Issue

#1: Plaintiff

cannot establish his first through third causes of action against FMC for Civil Code section 1793.2, subdivisions (d), (b) or (a)(3) violations, because he cannot establish that there was a nonconformity in the vehicle that FMC or its authorized repair facilities in this state failed to repair under warranty after a reasonable number of repair attempts;

Issue

#2: Plaintiff's

first through third causes of action against FMC are time-barred by the four-year statute of limitations;

Issue

#3: Plaintiff

cannot establish his second cause of action for violation of Civil Code section 1793.2, subdivision (b) against FMC because he cannot establish that any warranty repair lasted longer than 30 days or prove the element of damages;

Issue

#4: Plaintiff

cannot establish his third cause of action for violation of Civil Code section 1793.2, subdivision (a)(3) against FMC because he cannot establish that FMC failed to make available to authorized service and repair facilities sufficient service literature and replacement parts or prove the element of damages;

Issue

#5: Plaintiff

cannot establish his fourth cause of action for breach of implied warranty

against FMC because there were no warranty repairs during the implied warranty period and the only evidence is that the vehicle drove more than 120,000 miles and was fit for ordinary purposes;

Issue

#6: Plaintiff

cannot establish his fourth cause of action against FMC because the claim is barred by the statute of limitations and Plaintiff cannot toll same for nearly two years;

Issue

#7: Plaintiff

cannot establish his fifth cause of action for Fraudulent Concealment against FMC because he cannot establish that FMC had any transactional relationship triggering any duty to disclose;

Issue

#8: Plaintiff

cannot establish his fifth cause of action against FMC because it is time-barred by the three-year statute of limitations;

Issue

#9: Plaintiff

cannot establish his fifth cause of action against FMC because he cannot establish that FMC had knowledge of a defect at the time of sale;

Issue

#10: Plaintiff

cannot establish his sixth cause of action for Negligent Repair against Performance because he cannot establish damages and the claim is barred by the economic loss rule.

Request

for Judicial Notice

The

Court rules on Plaintiff's Request for Judicial Notice ("RJN") as follows: Denied as to Exhibits Nos. 1-17 (i.e., represented to be copies of various Bates-stamped records in *Avila v. Ford Motor Co.*, No. 22-CV000542-PCP, 2026 WL 508364, at*8 (N.D. Cal. Feb. 24, 2026)) and No. 18 (25 Technical

Service Bulletins ["TSBs"]).

Pursuant

to Evidence Code section 453, subdivision (b), the party requesting judicial notice must furnish the court with sufficient information to enable it to take judicial notice of the matter. The Law Revision Commission Comments provide, in relevant part, that "[u]nder Section 453, the court is not required to resort to any sources of information not provided by the parties. If the party requesting that judicial notice be taken under Section 453 fails to provide the court with "sufficient information," the judge may decline to take judicial notice."

"The court may in its

discretion take judicial notice of any court record in the United States. (Evid. Code § 451). This includes any orders, findings of facts and conclusions of law, and judgments within court records." (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.) "However, while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof." (Id.)

Further, as to No. 18,

every TSB included therein post-dates Plaintiff's purchase of the subject vehicle on June 22, 2017 and is thus irrelevant to any purported "pre-sale knowledge." (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 544, fn. 4.)

Procedural

Deficiencies

The Court

observes that portions of Plaintiff's opposing separate statement, including Plaintiff's response to Fact Nos. 1-3 and 6-20 as to Issue No. 1, Fact Nos. 1-5 as to Issue No. 2, Fact Nos. 1-3, 8, 9, 18-21, and 23 as to Issue No. 3, Fact Nos. 1, 20, 22 and 23 as to Issue No. 4, Fact Nos. 1, 8, 9, 18, 19, and 20 as to Issue No. 5, Fact Nos. 1, 8, 9, and 18-20 as to Issue No. 6, Fact Nos. 1 and 20 as to Issue Nos. 7 and 8, Fact No. 1, 20, and 25-31 as to Issue No. 9, Fact No. 1, 20, and 33 as to Issue No. 10, reflect non-compliance with California Rules of Court rule 3.1350,

subdivision (f)(2) (i.e., “the response must unequivocally state whether that fact is ‘disputed’ or ‘undisputed’. . .”).

Plaintiff’s opposing separate statement also improperly includes evidentiary objections (see below).

Evidentiary Objections

The Court overrules Plaintiff’s evidentiary objections, which are contained solely in his opposing separate statement. “[A] separate statement is not evidence; it refers to evidence submitted in support of or opposition to a summary judgment motion. (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 178, fn. 4 [emphasis theirs].) California Rules of Court rule 3.1354 requires that evidentiary objections be separately served and filed and states that they “must not be restated or reargued in the separate statement.” (Hodjat v. State Farm Mut. Auto. Ins. Co. (2012) 211 Cal.App.4th 1, 9 [upholding the trial court’s refusal to rule on objections contained solely in the separate statement].)

The Court rules on FMC and Performance’s evidentiary objections as follows:

Overruled in full as to “Objections to Plaintiff’s Separate Statement.”

As to Plaintiff’s Declaration: sustained as to Nos. 1 and 6-11; overruled as to Nos. 2, 4, 12 and 13; sustained in part as to No. 3 (i.e., as to language “a condition Ford knew or should have known about prior to selling me the vehicle”) and otherwise overruled; sustained in part as to No. 5 (i.e., as to language “the Subject Vehicle began experiencing a transmission defect”); and otherwise overruled;

As to Gregory Yu (“Yu”) Declaration: Sustained as to No. 1.

Merits

On May

8, 2024, Plaintiff filed a FAC against FMC and Performance, asserting causes of action for (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; (5) Fraudulent Inducement—Concealment; (6) Negligent Repair; the first through fifth causes of action were directed to FMC only, while the sixth cause of action was directed against Performance only.

First

Through Third Causes of Action (i.e., Violations of Subdivision (d), (b) and (a)(3) of Civil Code Section 1793.2, Respectively)

The

first cause of action in Plaintiff's FAC alleges that Plaintiff entered into a warranty contract with FMC regarding a 2017 Ford F150, VIN #1FTEW1EG4HKD09633 ("subject vehicle"); that defects and nonconformities to warranty manifested themselves in the subject vehicle within the applicable express warranty period; that Plaintiff delivered the subject vehicle to FMC's authorized repair facility ; that FMC failed to conform the subject vehicle to the terms of the express warranty after a reasonably number of opportunities; and that FMC subsequently failed to repurchase or replace the subject vehicle. (FAC, ¶¶ 7, 13, 17, 43, 44, and 61-63.)

The second cause of

action in Plaintiff's FAC alleges that FMC and its in-state representatives failed to service or repair the subject vehicle so as to conform to the applicable warranties within 30 days. (Id., ¶ 67.)

The third cause of

action in Plaintiff's FAC alleges that FMC failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. (Id., ¶ 72.)

FMC moves for summary

adjudication of the first through third causes of action on grounds that Plaintiff cannot establish that there was a non-conformity in the subject vehicle that FMC or its authorized in-state repair facilities failed to repair under warranty after a reasonable number of repair attempts (i.e., Issue No. 1).

“A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element).” (Donlen v. Ford Motor Co. (2013) 217 Cal.App.4th 138, 152; Civ. Code § 1793.2, subd. (d).) Out-of-state presentations cannot form the basis for a plaintiff’s claim. (Civ. Code § 1793.2, subd. (c) [requiring the buyer “to deliver the nonconforming goods to the manufacturer’s service and repair facility within this state, unless, due to reasons of size and weight, or method of attachment, or method of installation, or nature of the nonconformity, delivery cannot reasonably be accomplished”]; see also subds. (d)(1) and (d)(2) [requiring presentations to in-state facilities].)

FMC proffers the following evidence:

Plaintiff purchased the subject vehicle on June 22, 2017. (Moawad Decl., ¶¶ 2 and 3, Exhs. 1 and 2.) The bumper-to-bumper warranty, which ran for three years from purchase or 36,000, whichever occurred first, expired sometime prior to September 17, 2019. (Id., ¶¶ 3 and 4, Exh. 2(A), p. 8 and Exh. 4.) The powertrain warranty, which ran for five years from purchase or 60,000 miles, whichever occurred first, expired sometime shortly after December 3, 2020. (Id.) Between September 26, 2017 and February 4, 2020, Plaintiff presented the subject vehicle six times to the dealership Ford of West Covina for routine maintenance. (Id., ¶ 4, Exh. 4.) Plaintiff produced no evidence that he authorized, let alone requested, anything other than routine maintenance during the six maintenance visits at Ford of West Covina. (Id., ¶¶ 4, 14, 16 and 17, Exhs. 4, 14, 16, and 17.) Plaintiff then presented the subject vehicle multiple times to the dealership, Bradley Ford, which is located in Lake Havasu City, Arizona. (Id., ¶¶ 4-11 and 15-17, Exhs. 4-11 and 15-17.) Plaintiff brought the subject vehicle to Performance for repair on February 21, 2023; at that time, the subject vehicle had 97,731 miles on the odometer. (Id., ¶¶ 12 and 15-17, Exhs. 12 and 15-17.) Plaintiff complained during this visit that the subject vehicle had sporadic rough shifting gears. (Id., ¶¶ 12 and

15. Exhs. 12 and 15.) The dealership replaced the transmission, performed a road test to verify the repairs and returned the subject vehicle to Plaintiff by March 10, 2023. (Id., ¶¶ 12 and 15. Exhs. 12 and 15.) On May 9, 2023, Plaintiff presented the subject vehicle to Performance, complaining that the vehicle would shudder when warm. (Id., ¶¶ 12 and 15-17, Exhs. 12 and 15-17.) The subject vehicle had 99,596 miles on the odometer at the time of this visit. (Id., ¶¶ 12 and 15, Exhs. 12 and 15.) Performance verified the concern, replaced a vacuum check valve and returned the subject vehicle to Plaintiff by May 19, 2023. (Id.)

Here, FMC meets its initial burden by offering evidence that Plaintiff never presented the subject vehicle for a single warranty repair. The burden shifts to Plaintiff to show a triable issue of fact. Plaintiff, in turn, asserts that he presented the subject vehicle for “at least three qualifying repairs.” (Opp., 9:11-12; Plaintiff’s Decl., ¶ 12.) However, in response to FMC’s interrogatory to identify all dates Plaintiff presented the subject vehicle for repair, Plaintiff identified the subject vehicle’s repair history, complaint and document productions; he did not identify the maintenance visits listed in Plaintiff’s Statement of Facts (“SGD”) 11. (Moawad Dec., ¶ 16, Exh. 16, at No. 2.) “Where a declaration submitted in opposition to a motion for summary judgment motion clearly contradicts the declarant’s earlier deposition testimony or discovery responses, the trial court may fairly disregard the declaration and conclude there is no substantial evidence of the existence of a triable issue of fact.” (Whitmire v. Ingersoll-Rand Co. (2010) 184 Cal.App.4th 1078, 1087 [internal quotations and citation omitted].) The Court determines that Plaintiff has failed to meet his burden.

The Court grants FMC’s motion for summary adjudication as to Issue No. 1; as such, the Court denies the motion for summary adjudication as moot with respect to Issues Nos. 2-4.

Fourth
Cause of Action (i.e., Breach of the Implied Warranty of Merchantability)

The fourth cause of action in Plaintiff’s FAC alleges that the Subject Vehicle was sold with latent defects, such that it “(1) does not pass without objection in the trade under the contract description, (2) is not fit for the ordinary purposes for which such goods are used, (3) is not adequately contained, packaged, and labelled, and (4) does not conform to the promises or affirmations

of fact made on the container or label.” (FAC, ¶ 77; see Civ. Code § 1791.1.)

FMC moves for summary

adjudication of the fourth cause of action on grounds that there was no breach during the implied warranty period.

“The

duration of an implied warranty of merchantability is one year if the express warranty is one year or more. (Civ. Code, § 1791.1, subd. (c).)” (Isip v. Mercedes-Benz USA, LLC (2007) 155 Cal.App.4th 19, 22, fn. 1.)

FMC proffers the

following evidence:

Plaintiff purchased the subject vehicle on June 22, 2017.

(Moawad Decl., ¶¶ 2 and 3, Exhs. 1 and 2.) Between September 26, 2017 and February 4, 2020, Plaintiff presented the subject vehicle six times to the dealership Ford of West Covina for routine maintenance. (Id., ¶ 4, Exh. 4.) Plaintiff produced no evidence that he authorized, let alone requested, anything other than routine maintenance during the six maintenance visits at Ford of West Covina. (Id., ¶¶ 4, 14, 16 and 17, Exhs. 4, 14, 16, and 17.) Plaintiff brought the subject vehicle to Performance for repair on February 21, 2023. (Id., ¶¶ 12 and 15-17, Exhs. 12 and 15-17.) Here, FMC has shifted its initial burden to Plaintiff to show a triable issue of fact.

Plaintiff, in

turn, argues that the Subject Vehicle had “transmission defects” and a “massive coolant leak” without regard for when those issues occurred. As Plaintiff’s SGD 13 and 14 states, the repairs for the transmission and coolant leak occurred years after the implied warranty expired. Nor does Plaintiff provide any evidence or arguments that these were “latent defects”; rather, he asserts only that their mere existence breaches the implied warranty. The Court determines that Plaintiff has failed to meet his burden.

The Court grants FMC’s motion for summary

adjudication as to Issue No. 5; as such, the Court denies the motion for summary adjudication as moot with respect to Issue No. 6.

Fifth

Cause of Action (i.e., Fraudulent Inducement—Concealment)

The fifth

cause of action in Plaintiff's FAC alleges that prior to Plaintiff acquiring the Subject Vehicle, FMC knew that the 10-speed transmission installed in the Subject Vehicle was defective but failed to disclose this fact to the Plaintiff at the time of the sale and after. (FAC, ¶¶ 80-94.)

"[T]he elements of

an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248 [citation and internal quotations omitted].)

There are "four

circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts." (Heliotis v. Schuman (1986) 181 Cal.App.3d 646, 651.) The second through fourth circumstances in which nondisclosure may be actionable "presupposes the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise." (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336-337.) "[A] duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement." (Id. at 337.)

FMC argues that there is

no "transactional relationship" giving rise to a duty to disclose. Plaintiff, however, has alleged the existence of such a relationship created between the parties at the time of the purchase of the subject vehicle via the warranty. (See Scherer v. FCA US, LLC (S.D. Cal. 2021) 565 F.Supp.3d 1184, 1994 ["Plaintiffs do present a contractual relationship with Defendant, because they

entered into a warranty agreement. Accordingly, this contractual relationship or transaction gives rise to a duty to disclose.”].) The Court disagrees with FMC’s characterization of *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 and *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 as standing for the proposition that the existence of a warranty alone does not constitute a transactional relationship. Additionally, “a vendor has a duty to disclose material facts not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold.” (*OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 851.) FMC has failed to negate the existence of a duty of disclosure.

Next,

FMC moves for summary adjudication of the fifth cause of action on grounds of lack of scienter. FMC points to Plaintiff’s discovery responses and asserts that Plaintiff cannot establish that FMC had knowledge of a transmission defect in his vehicle at the time of sale. “On summary judgment, an alternative method by which a defendant may meet its burden of showing that an essential element of the plaintiff’s claim cannot be established is to present evidence that the plaintiff ‘does not possess and cannot reasonably obtain, needed evidence.’” (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110.) The defendant must “present evidence, and not simply point out through argument, that the plaintiff does not possess and cannot reasonably obtain the needed evidence.” (*Id.*) “Circumstantial evidence supporting a defendant’s summary judgment motion can consist of factually devoid discovery responses from which an absence of evidence can be inferred, but the burden should not shift without stringent review of the direct, circumstantial and inferential evidence.” (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 101.) FMC does not establish, through Plaintiff’s discovery responses, that Plaintiff cannot reasonably obtain evidence regarding the element of scienter. FMC does not independently provide evidence refuting scienter. The Court determines that FMC has failed to meet its initial burden.

Next, FMC moves for

summary adjudication of the fifth cause of action on grounds that it is time-barred. FMC’s reasons that “[i]f Plaintiff had ‘been complaining about this transmission [issue] every oil change’ as he claims, that only proves Plaintiff was aware of his claim as early as 2017. (See UF 4.) Thus, Plaintiff’s claim also likely accrued by May 2019 (if not earlier) and expired three years later in May 2022—about two years before suit.” (Motion, 26:4-6.) Under Code of Civil Procedure

section 338, subdivision (d), however, a cause of action “is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” Here, FMC has offered no evidence to suggest when Plaintiff learned the facts constituting the fraud. The Court determines that FMC has failed to meet its initial burden.

Sixth

Cause of Action (i.e., Negligent Repair)

The

sixth cause of action in Plaintiff’s FAC alleges that Plaintiff delivered the Subject Vehicle to Performance for substantial repair on at least one occasion, that Performance owed a duty to use ordinary care and skill in storing, preparing and repairing the Subject Vehicle in accordance with industry standards, which it breached, and that Plaintiff sustained damages. (FAC, ¶¶ 96-99.)

“The

elements of any negligence cause of action are duty, breach of duty, proximate cause, and damages.” (Peredia v. HR Mobile Services, Inc. (2018) 25 Cal.App.5th 680, 687.)

Performance

moves for summary adjudication of the sixth cause of action on the basis that Plaintiff does not allege nor have evidence of damages related to the alleged negligent repair. (Moawad Decl., ¶¶ 16, Exhs. 16-18.) Here, FMC has shifted its initial burden to Plaintiff to show a triable issue of fact. Plaintiff, in turn, merely argues that “[he] complained about transmission issues at multiple repair visits, but Defendant failed to take any action, and the vehicle’s problems continued, damaging Plaintiff. (SGD 11, 15).” (Opp., 19:8-11.) Plaintiff has failed to raise a triable issue of fact. The Court grants Performance’s motion for summary adjudication as to Issue No. 10.